SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Writ Petition (Civil) No. 494 of 2012 (Aadhaar Judgment) (YEAR: 2019)

CORAM: DIPAK MISRA, A.K. SIKRI, A.M. KHANWILKAR, D.Y. CHANDRACHUD, ASHOK BHUSHAN

K.S. Puttaswamy (Aadhaar-5J.)
... Appellant(s) / Petitioner(s)
Versus
Union of India
... Respondent(s)

Acts Referred:	Aadhaar Act, 2016, Constitution of India
Sections:	Section 7 Aadhaar Act, Section 57 Aadhaar Act, Article 21

JUDICIAL HEADNOTE & SUMMARY

Upheld constitutional validity of Aadhaar for government welfare subsidies under Section 7, but struck down Section 57 permitting private corporate entities from demanding Aadhaar data.

RATIO DECIDENDI

The Court held that: Upheld constitutional validity of Aadhaar for government welfare subsidies under Section 7, but struck down Section 57 permitting private corporate entities from demanding Aadhaar data. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in K.S. Puttaswamy (Aadhaar-5J.) v. Union of India (Writ Petition (Civil) No. 494 of 2012 (Aadhaar Judgment)) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Aadhaar Act, 2016, Constitution of India, particularly Section 7 Aadhaar Act, Section 57 Aadhaar Act, Article 21. Upheld constitutional validity of Aadhaar for government welfare subsidies under Section 7, but struck down Section 57 permitting private corporate entities from demanding Aadhaar data.

OPERATIVE ORDER

ORDER: Decided